

CRIME WARNING AND LIMITATION OF LIABILITY ADDENDUM

Addendum Date

Owner

as Agent for the Owner of

Property Name — enters into this Crime Warning and Limitation of Liability Addendum to the Rental Contract with

("Resident"), pertaining to

House / Unit No.

located at

This addendum is part of the Rental Contract dated

- 1. Important — Please read this addendum before signing.** This addendum pertains to crime that may be committed in or around the property and to personal injuries or property loss sustained by the Resident as the result of that crime. This addendum requires the Resident to take reasonable steps to protect his or her safety and security, and it *limits the liability* of the Owner and managing agent or company under certain circumstances for injuries, property loss, and damages. Your signature below means that you read and understand this addendum. Although all parts of this addendum are important, please see Paragraph 9 regarding your waiver and release of the Owner and Management related to certain claims.
- 2. Definitions.** The term "Resident" includes all Residents who have signed this addendum and any child, minor, person, or occupant of which the Resident is the parent or legal guardian. The term "Owner" refers to the ownership entity. If this addendum is signed by the Owner, then the Owner is also referred to as "Management." If this addendum is signed by the company or persons managing the property on behalf of and as the agent for the Owner, then "Management" refers to the managing agent of the owner. The terms "Owner" and "Management" include their respective general and limited partners, officers, directors, agents, employees, and shareholders or members. The term "security" refers to any procedure, equipment, personal property, or personnel that have or may have some function related to deterring, limiting, or preventing crime or access in, to, or near the property. "Security" includes, but is not limited to, access gates, fences, alarm or intrusion systems, surveillance cameras, digital video recorders, lighting, door and window locks, audio communication boxes, gate clickers, access codes, courtesy officers, and security officers or personnel.
- 3. Owner and Management Make No Representations, Guaranties, Covenants, or Warranties About the Safety of the Property from Crime or Providing Security that Will Prevent Crime.** Resident acknowledges and agrees that neither the Owner nor Management have made any verbal or written representations, guaranties, covenants, or warranties, either express or implied, that: the property or its entrances, exits, or any portion are safe or free from crime; the neighboring community or neighborhood outside of or around the property is safe or free from crime; or security is, has been, or will be provided that will protect Resident or his property from crimes or will prevent crime from occurring in or around the property. Neither the Owner nor Management market, advertise, or represent that the Resident or Resident's occupants, social guests, visitors, or invitees will be safe or free from crime while they are in, near, at, leaving, or entering any portion of the property. Although the Owner and Management may provide certain forms of security, such security cannot deter or prevent all crimes. Crimes do occur from time to time at or near the property, but neither the Owner nor Management know when or where a crime will occur.
- 4. Existence or Absence of Security Procedures, Devices, or Personnel Does Not Create an Assurance of Safety or Crime Prevention.** Resident acknowledges and agrees that the existence, presence, or absence of security procedures, devices, or personnel do not constitute any kind of implied warranty or representation from the Owner or Management that the Resident will be safe or protected from crime or that such security procedures, devices, or personnel will prevent or deter crime. Resident agrees that there is no law or contractual agreement of any kind that requires the Owner or Management to use or provide specific kinds of security procedures, devices, or personnel, and that Owner and Management are not contractually obligated to provide security to Resident under the wording of the lease or this addendum. The Owner and Management may provide certain basic security devices such as locks on doors and windows or intrusion alarm systems in the house. The Resident is responsible for checking whether such locks and intrusion alarms are functioning and must promptly report any need for repair, replacement, or maintenance. The Owner's duty to provide repairs in the house is controlled by applicable landlord and tenant law. Having parted with possession of the house when Resident took possession, Resident is responsible for giving proper notice to the Owner or Management of the need for any repairs to locks and intrusion alarm systems and for properly using them. It is Resident's responsibility to exercise due care and caution for his or her own safety at all times when entering, exiting, and inside the house by properly inspecting and using all security and safety devices. Nothing in this addendum waives or changes the Owner's duty to make repairs to the house as provided under applicable landlord and tenant law.
- 5. Limitations in the Function of Access Gates and Perimeter Fencing.** Resident acknowledges and agrees that the function of any controlled or limited access gates and perimeter fencing is limited in its effectiveness as a form of security. If such access gates and fencing are present, their function is to control, limit, and deter access. Resident understands and agrees that fencing, doors, and access gates will not prevent unauthorized entry and crime, and that other persons could provide unauthorized persons entry, access codes, or opening devices. The Owner and Management have no way of knowing when or how persons who are not a resident or occupant will be provided access or whether such persons intend to commit a crime.
- 6. Security Personnel and Owner or Management Employees Do Not Provide Emergency or Law Enforcement Services.** Resident acknowledges and agrees that: security personnel and Management employees are not employed to provide emergency, medical, security, protection, fire, or police services; the primary function of security personnel, if present, is to observe and report incidents as directed by the Owner and Management; Owner and Management do not offer any armed or unarmed security personnel that will keep the Resident safe and prevent crimes; and it is the responsibility of appropriate federal, state, and local law enforcement agencies to protect Resident, respond to reports of crime, deter crime, and make arrests for violations of the law.

- 7. Owner and Management May Discontinue or Change Security Personnel, Devices, or Procedures Without Notice or Liability.** Owner and Management shall have the right at any time, with or without notice, to install, modify, or remove any security procedures, devices, or personnel without liability therefore. Any modification or removal shall not serve as a basis for a breach of contract or tort claim against the Owner or Management. Failure or malfunction of security to operate properly or prevent crime shall not serve as grounds for abatement of rent or for the Resident to terminate the lease. The Resident's obligation to pay rent is independent of the Owner's or Management's duties under the law.
- 8. Resident Has a Duty to Exercise Due Care at All Times for His or Her Safety.** Resident acknowledges and agrees that he or she has a duty at all times to exercise due care to protect and provide for his or her own safety and property from the criminal acts of others, and that the Owner or Management cannot and do not provide police or law enforcement services. In the event Resident or his family, occupants, guests, or invitees are in need of emergency, medical, security, protection, fire, or police services, Resident has the duty to contact the appropriate governmental emergency, medical, fire, or law enforcement service or agency.
- 9. Limitation of Owner's and Management's Liability.** Neither Owner nor Management shall have liability to Resident for damage or injury sustained due to the criminal acts of others. Resident expressly waives and releases Owner and Management from any liability or negligence claim based on alleged criminal acts of others, to the fullest extent allowed by law. Resident acknowledges that it is impossible for the Owner or Management to know when or how a crime may be committed or to prevent a crime from happening. The Owner and Management are not responsible or liable for the criminal acts of others who violate the law and cause injury or property loss to Resident or Resident's occupants, family members, social guests, visitors, or invitees, except as may otherwise be provided by law. This addendum limits the ability of Resident to sue for or recover civil damages from the Owner or Management for crimes committed against the Resident or loss of property by others under certain conditions. Resident agrees that the Owner and Management are not guarantors of Resident's safety and agrees to waive, release, and forego any premises liability claim for personal injuries or property loss due to crime committed by others. The waiver and release in this paragraph do not apply to the Owner's duties and liability under applicable landlord and tenant law that apply to the house. The commission of a crime against another person shall not serve as ground for abatement of rent or for the Resident to terminate the lease.
- 10. Owner and Management Have No Liability for Crime Committed on Another's Property or on Public or Private Easements.** Neither Owner nor Management shall have any liability for any crime committed on or originating on property of another owner or on property adjacent to the property that is not owned by Owner. Neither Owner nor Management shall have liability for any crime that occurs on a public right of way, or on a private right of way, easement, or license held, controlled, or maintained by a federal, state, city, or county government or by another owner, private person, or public utility or agency.
- 11. Off-Duty Law Enforcement Officers Are Not Employees of Owner or Management.** Resident acknowledges and agrees that any law enforcement officer who provides services of any kind to the property in exchange for discounted rent or compensation acts solely as an independent contractor and is not an employee of the Owner or Management. Officers who may be described as "courtesy officers" or who provide services while not on regular duty are not employees of the Owner or Management. To the extent any such officer exercises police powers to perform an arrest, deter a crime, or apprehend a criminal, it is performed in his or her governmental law enforcement capacity and not as an agent of the Owner or Management.
- 12. Intrusion Alarms In the House Do Not Guarantee Resident's Safety from Crime.** An intrusion alarm system in the house, if any, is not a guarantee of Resident's safety from crime. If such an intrusion system was installed by Owner or Management as part of the leased premises, it is Resident's responsibility to establish his or her own monitoring contractor. The system is not monitored by the Owner, Management, any security service, or any law enforcement agency, and is not connected to any central or monitored system as part of the lease. Neither Owner nor Management shall have any duty to monitor or respond to an intrusion alarm system, nor any liability for failing to do so. Owner and Management may at any time, with or without notice, replace, discontinue, or disconnect any such alarm or intrusion system, and any such change shall not relieve Resident of liability for payment of rent nor excuse Resident from fulfilling the balance of the lease term.
- 13. Owner and Management Are Not Required to Provide Notices of Crime.** Resident acknowledges and agrees that: Owner and Management are not required by law to provide written or verbal notices of crimes committed in or around the property; a decision to provide crime notices does not create a legal or contractual duty to investigate, provide information, or continue giving such notices; the failure to give notice of crime does not breach any legal, tort, or contractual duty; Resident has an affirmative obligation to perform his or her own due diligence as to crime in or around the property; and it is speculative whether the giving or receipt of a crime notice would have prevented a crime, injury, or loss. Resident acknowledges that Owner and Management do not have knowledge of every crime, as many crimes go unreported, and crimes reported only to police may not be known to the Owner or Management. Resident agrees never to assume he or she is safe from crime and to exercise due care for his or her safety at all times.
- 14. Lighting Conditions Cannot Form a Basis of Liability for Crime.** The Owner and Management shall not be liable to Resident in tort or contract for the failure of a light to function properly, low lighting, or lack of lighting. Resident agrees to avoid using dark or unlighted areas until the lighting is repaired and to exercise reasonable steps for his or her safety when entering and exiting under low- or no-light conditions. Resident waives and releases the Owner and Management from any claims of negligence based on failure to provide adequate or proper lighting, and agrees that whether such lighting would have prevented a crime is speculative and cannot form the basis of liability for injury or loss due to crime.
- 15. Resident Agrees to Inform Family Members, Occupants, Social Guests, Visitors, and Invitees Regarding Crime and Safety.** Resident has a duty and agrees to advise and notify his family, occupants, social guests, visitors, or invitees of all provisions in this addendum and to warn them to exercise due care for their safety at all times. Resident agrees to indemnify and hold harmless Owner and Management from any and all claims, losses, personal injuries, property loss, or damages to Resident's family, occupants, social guests, visitors, or invitees due to Resident's failure to advise or notify them of the contents of this addendum.

- 16. Severability.** If any phrase, sentence, portion, provision, or paragraph of this addendum shall be found to be void or unenforceable under applicable law, then such void or unenforceable portion shall be severed, and the balance of this addendum shall be upheld as valid and enforceable so as to carry out the expressed intent of the parties. The provisions of this addendum are contractual in nature and not mere recitals.
- 17. Merger of All Prior Statements.** All prior statements, representations, or agreements pertaining to security shall be void and unenforceable and are merged herein unless such representation is in writing and signed by all parties to this addendum and the Rental Contract.
- 18. Incorporation by Reference into the Rental Contract.** This addendum shall be incorporated into the Rental Contract between the Resident and Owner and Management and is effective and enforceable regardless of whether it has been separately signed by the parties. The terms and provisions contained in this addendum shall remain in effect throughout Resident's occupancy, and this addendum shall not be revoked in the event Resident extends the original lease, signs a renewal contract, or signs an entirely new rental contract for continued occupancy.
- 19. Resident Has Inspected or Has Had the Opportunity to Inspect the House for Security, Safety, and Crime.** Resident acknowledges and agrees that he or she has inspected or had the opportunity to inspect and investigate the house for security, safety, and crime and determined to his or her satisfaction that the security is adequate, satisfactory, and in proper working order unless otherwise noted on the Move-In inspection form or in written notice to the Owner or Management. Any comments noted on the Move-In inspection form are not a written request to repair; any request to repair must be submitted separately in writing. Neither the Owner nor Management shall have any duty to inspect, test, repair, or service door locks or latches, window locks or latches, or intrusion alarm systems inside the house until the Resident has notified the Owner or Management in writing of the need for such repairs or replacement.
- 20. Resident Responsible for Any Self-Installation of an Alarm, Intrusion System, or Locks.** Resident acknowledges and agrees that if he or she installs their own locks or intrusion alarm system, such installation shall be deemed an improvement made by Resident, and Resident shall be responsible and obligated to repair and maintain any self-installed intrusion alarm system or locks. Owner and Management shall not be responsible for or obligated to repair, replace, or maintain any locks or intrusion alarm system installed by Resident or Resident's contractor.

Name of Owner or Management Company

Resident

B

y:

Signature of Management Representative

Resident

A

s:

(Title)

Resident

Resident

Resident

Resident